

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



July 16, 2018

Honorable Robert R. Fitzgerald
Judge of the Superior Court
County of Orange
1275 North Berkeley Avenue
Fullerton, CA 92832

Re: Martinez, Hermillio
CDC No.: V93482
Case No.: 03NF0976
Date of Sentence: July 29, 2005

Dear Honorable Robert R. Fitzgerald:

The purpose of this letter is to provide the court with authority to resentence Hermillio Martinez pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Martinez was sentenced in 2005, and was convicted of section 245, subdivision (b), Assault With Semiautomatic. The trial court sentenced inmate Martinez on July 29, 2005. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Martinez's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Martinez's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,



SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
First Amendment Felony Information

cc: Honorable Robert R. Fitzgerald, Orange County Presiding Judge
Orange District Attorney
Private Attorney

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE
(NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED)

V-93482

AUG 1 1 2005

CR-290

☒ SUPERIOR COURT OF CALIFORNIA, COUNTY OF: <u>Orange</u> ☐ MUNICIPAL BRANCH OR JUDICIAL DISTRICT:		FILED AUG 10 2005 ENTERED INTO OBIS ALAN SLATER, Executive Officer/Clerk	
PEOPLE OF THE STATE OF CALIFORNIA vs DEFENDANT: Martinez, Hermilio			
DOB: 10-11-84 AKA: CII# A21034865 BOOKING# 2114465 TL			
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGEMENT			
DATE OF HEARING 07-29-05		DEPT. NO. C3	JUDGE Robert R. Fitzgerald
CLERK Betty Ard		REPORTER Lorraine Jordan	
COUNSEL FOR PEOPLE Steven Yonemura		COUNSEL FOR DEFENDANT David Scarsone, Retained Attorney	

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment
 0 (number of pages attached)

CNT.	CODE	SECTION NO.	CRIME	YEAR CRIME CMMTD	DATE OF CONVICTION (MO/DATE/YEAR)	CONVICTED BY			TERM (L,M,U)	CONCURRENT	CONSECUTIVE 1/3 VIOLENT	CONSECUTIVE 1/3 NON-VIOLENT	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (refer to item 5)	664 STAY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COURT	PLEA								YRS	MOS.
1A	PC	664-192(a)	Attempted voluntary man	03	06/15/05	X											
2A	PC	245(b)	Assault with semiautomat	03	06/15/05	X			U							09	00

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or 'S' for stayed. DO NOT LIST enhancements stricken under PC 1385.

CNT.	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL
2A	12022.5(a) PC	10Y00M	186.22(b)(1)(A) PC	10Y00M	12022.7(a) PC	03Y00M			23 0

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or 'S' for stayed. DO NOT LIST enhancements stricken under PC 1385.

ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL

4. ☐ Defendant was sentenced pursuant to PC 667(b)-(i) or PC 1170.12 (two strikes).

5. INCOMPLETED SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6. TOTAL TIME ON ATTACHED PAGES: 00 00

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME: 32 00

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.

(Continued on reverse)

PEOPLE OF THE STATE OF CALIFORNIA vs.

DEFENDANT: Martinez, Hermilio

03NF0976

-A

-B

-C

-D

9 FINANCIAL OBLIGATIONS (including any applicable penalty assessments):

- a. RESTITUTION FINE of: \$ 400.00 per PC 1202.4(b) forthwith per PC 2085.5.
- b. RESTITUTION FINE of: \$ 400.00 per PC 1202.45 suspended unless parole is revoked.
- c. RESTITUTION of: \$ _____ per PC 1202.4(f) to ☐ victim(s) ☐ Restitution Fund
 (* List victim name(s) if known and amount breakdown in item 11, below.)
 (1) ☐ Amount to be determined.
 (2) ☐ Interest rate of: _____ % (not to be exceed 10% per PC 1204.4(f)(3)(F)).
- d. ☐ LAB FEE of: \$ _____ for counts: _____ per H&SC 11372.5(a).
- e. ☐ DRUG PROGRAM FEE of _____ per H&SC 11372.7(a).
- f. ☐ FINE of: \$ _____ per PC 1202.5.

10. TESTING

- a. ☐ AIDS pursuant to ☐ PC 1202.1 ☐ other (specify):
- b. ☒ DNA pursuant to ☐ PC 290.2 ☒ other (specify): PC 296

11. Other orders (specify):

Total term to be served in State Prison is 32 Years.

Pay \$20.00 for Security Fee pursuant to Penal Code 1465.8.

12. Execution of sentence imposed

- a. ☒ at initial sentencing hearing.
- b. ☐ at resentencing per decision on appeal.
- c. ☐ after revocation of probation
- d. ☐ at resentencing per recall of commitment. (PC 1170(d).)
- e. ☐ other (specify):

13. CREDIT FOR TIME SERVED

CASE NUMBER	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
03NF0976 - A	1007	876	131 ☐ 4019 ☒ 2933.1
- B			☐ 4019 ☐ 2933.1
- C			☐ 4019 ☐ 2933.1
- D			☐ 4019 ☐ 2933.1
DATE SENTENCE PRONOUNCED 07/29/05	SERVED TIME IN STATE INSTITUTION ☐ DMH ☐ CDC ☐ CRC		

14. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays

To be delivered to ☒ the reception center designated by the director of the California Department of Corrections.
☐ other (specify):

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE

DATE

AUG 10, 2005

MARIZABEL DANTIC